

van was an extraordinary misuse of the van that was not reasonably foreseeable to Defendant. (Dorris dec. ¶18.)

Plaintiff provides a declaration for McGehee, an expert in industrial and systems engineering, where he explains that “drivers attempting to re-enter a vehicle after it has unexpectedly begun to move has been a persistent and well-known problem for over 25 years.” (McGee dec. ¶10(a).) He also states that in this case, Plaintiff’s action was foreseeable and predicable human behavior. (McGee dec. ¶54.) Thus, there is a triable issue of material fact as to foreseeability based upon the competing expert declarations.

The motion for summary adjudication as to the tenth and twelfth affirmative defenses is **denied**.

Rulings on Evidence

Plaintiff’s requests for judicial notice are granted.

Plaintiff’s objection to Dorris’ declaration paragraph 18 is Overruled.

The Court rules on Defendant’s objections to evidence as follows:

Stodola Declaration:

1. Sustained.
2. Overruled.
3. Overruled.
4. Overruled.

McGehee Declaration:

5. Overruled.
6. Overruled.

Gelder Declaration:

7. Overruled.
8. Overruled.
9. Overruled.

2. 9:00 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
***HEARING ON MOTION IN RE: QUASH DEPOSITION SUBPOENAS**
FILED BY: JOHNSON, GARY
TENTATIVE RULING:

This hearing date should have been vacated by the Court’s Order dated 2/20/26 appointing a Discovery Referee in this matter.

3. 9:00 AM CASE NUMBER: C24-00171
CASE NAME: VELDA CARR VS. IMRAN SYED
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY: SYED, APRYL
TENTATIVE RULING:

The Motion by attorney Herbert N. Wiggins/HEARTHSTONE LEGAL GROUP to be Relieved as Counsel for Defendant Apryl Syed rendered moot by the filed Substitution of Attorney filed April 29, 2026.

4. 9:00 AM CASE NUMBER: C24-00586
CASE NAME: GURPREET SINGH VS. JASPAL SINGH
HEARING IN RE: **NOT ON L&M CALENDAR SETTLEMENT MENTOR HEARING WITH ADR. MUST OCCUR IN PERSON IN D32 JURY ROOM DUE TO INTERPRETER REQUIREMENT**
FILED BY:
TENTATIVE RULING:

Parties to appear for settlement mentor meeting. Please report to Dept. 32 at 725 Court Street, Martinez, unless pre-approved by court to appear by Zoom.

5. 9:00 AM CASE NUMBER: C25-00064
CASE NAME: MILDRED POWELL VS. SUNSET VIEW CEMETERY ASSOCIATION
HEARING ON SUMMARY MOTION FILED BY DEFENDANTS/CONT'D FROM 8/7/26
FILED BY:
TENTATIVE RULING:

Defendant Sunset View Cemetery's Motion for Summary Judgment or Summary Adjudication of Issues is **denied**.

Statement of Facts

Plaintiffs Mildred Powell (Powell) and LaDecie Riley (Riley) bring this action against Defendant Sunset View Cemetery Association (Defendant) arising from the burial of Danielle Renee Riley (the Decedent), who was Powell's daughter and Riley's sister. The parties dispute whether the Decedent was buried in, and remains in, the location specified in the parties' burial contract.

The following facts are drawn from Defendant's Separate Statement of Undisputed Material Facts and Plaintiffs' responses.

Powell and Sunset View entered into a written contract for the Decedent's burial. (Defendant's Separate Statement of Undisputed Material Facts (UMF) 1.) Powell did not ask any questions about the row and grave number identified in the Burial Contract before signing it because the location, Grave 47, Row 47, was explained to her. (UMF 2.) Following the burial, Powell thought the Decedent had been buried in Grave 47, Row 47 because she signed the Burial Contract identifying that plot. (UMF 3.) Defendant asserts that no terms of the Burial Contract were misrepresented to Powell when